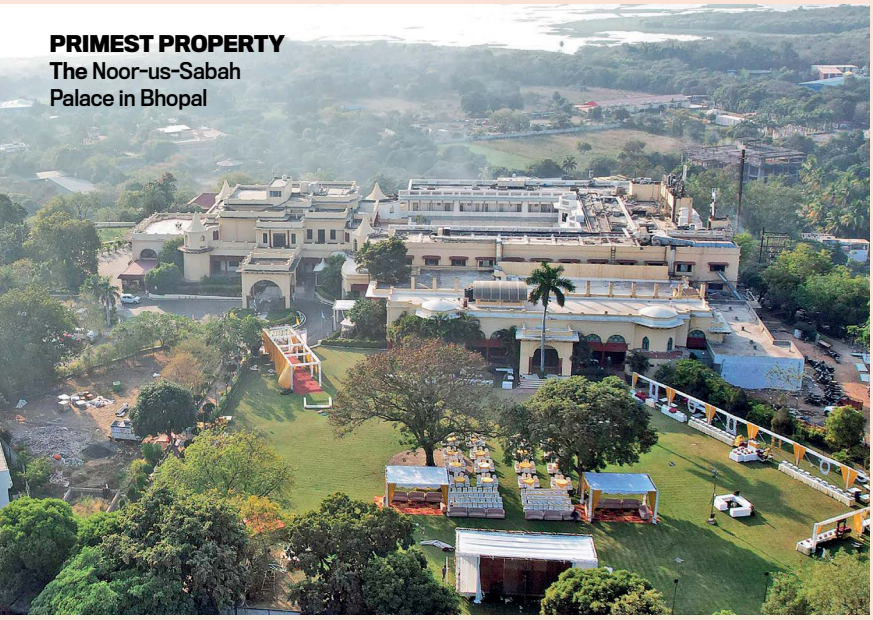


PRIMEST PROPERTY
The Noor-us-Sabah Palace in Bhopal

- The Custodian's order, they say, amounted to a violation of the merger agreement between the Union of India and Nawab Hamidullah Khan
- The agreement and a 1999 SC order say the Nawab's personal property would be solely inherited by the successor, that is Sajida Sultan

POINTING AT A 2019 SC ORDER ON THE RAMPUR STATE, A SECTION OF THE BHOPAL ROYALTY DEMANDS THAT THE PROPERTIES BE DIVIDED ON THE BASIS OF PERSONAL LAWS

Specifically, the agreement mentions that the Firdaus and Rizwan farms, measuring 829.28 acres and 139.75 acres respectively, would remain unaffected by the abolition of jagirs. Under the merger agreement, the privileges extended to the then ruler were to be extended to his successors too.

To buttress their claims, the petitioners cited a case filed by the cousins and sister of Sajida in 1999, through which they demanded a distribution of properties of Nawab Hamidullah Khan as per Muslim personal law. The Bhopal district court had ruled in favour of Sajida's heirs, stating that the personal property of the last nawab would be inherited solely by Sajida Sultan, who was recognised by the GoI as his successor. Lastly, Saif and the others said that the order by the Custodian was a violation of the Bhopal Succession Act 1947, under which Sajida was declared ruler.

DIFFERENT ANGLE

A section of the erstwhile Bhopal royalty, however, has embarked on a different path on the matter. They cite a July 2019 order by the Supreme Court which said that properties of erstwhile rulers were to be considered as personal properties and divided on the basis of relevant personal laws. They were not to be regarded as properties attached to the "gaddi" or rulership itself—that is, 'ruler's property' owned by a former ruler that is to be wholly transferred to his/ her designated heir. The SC order relates to Rampur, another Muslim princely state, and it could add a new dimension to matter regarding the Bhopal properties.

Like in Bhopal, the last Rampur Nawab, Reza Ali Khan, was granted certain privileges as part of the merger agreement with the Union of India, under which his personal property would be transferred wholly to his successor as per usual practice. When Reza died in 1966, his eldest son Murtaza Ali Khan was recognised by the Central government as his successor. But Murtaza's brother challenged this in court. The case finally reached the SC which ruled in 2019 that personal property of the ruler was to be divided among all his legal heirs as per Muslim personal law. In 2021, the district court of Rampur decided on a partition suit based on the ruling. One of the Nawab's heirs, Syeda Mehrunnisa, had migrated to Pakistan and so her share was placed with the Custodian of Enemy Property.

Based on this, some of the Bhopal royals have also filed a case at the MP High Court demanding that the Bhopal properties be divided as per Shariat law too. If their plea is upheld, a share would also be marked for Abida, and which would then be placed with the Custodian by dint of her migration. "The Supreme Court ruling in the Rampur case has made it clear that the division of property is to take place as per civil law granting legitimate share to all legal heirs. Our case pertaining to the Bhopal state properties has been reserved for judgment at the MP High Court," says advocate Aadil Singh Boparai, who represents the descendants of Rashid-uz-Zafar Khan, the nephew of Hamidullah Khan.

Meanwhile, the Bhopal district administration has not yet moved to secure the properties declared by the Custodian as enemy properties. "We are examining the court order and would act accordingly," says Bhopal district magistrate Kaushlendra Vikram Singh. Sources say there are many properties in Bhopal that still show the late Sajida Sultan as the owner. All eyes are now on the MHA joint secretary, the appellate authority, who has to decide whether the Custodian's order is tenable or not. The state government, too, is not divulging much. The clock is ticking for the former royals. ■